

FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES
State of Oklahoma

SPEAKER:

CHAIR:

I move to amend SB3 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____
Amendment submitted by: TJ Marti _____

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR ENGROSSED

SENATE BILL NO. 3

By: Green and Hamilton of the
Senate

and

Marti of the House

FLOOR SUBSTITUTE

An Act relating to industrial hemp; providing that the Oklahoma Department of Agriculture, Food, and Forestry, Oklahoma Tax Commission, and Alcoholic Beverage Laws Enforcement (ABLE) Commission shall administer the Oklahoma Industrial Hemp Program in conformity with the federal government's definition of hemp; limiting certain actions with exceptions; providing for promulgation of certain rules; granting agencies the authority to revoke certain licenses, permits, or other authorizations in certain instances; allowing fines for violations; providing that products that do not qualify as hemp under this act and are not exempted under state law shall be subject to the provisions of the Uniform Controlled Dangerous Substances Act; providing for a registration program; authorizing the promulgation of rules for registration; amending 2 O.S. 2021, Section 3-402, as last amended by Section 1, Chapter 266, O.S.L. 2024 (2 O.S. Supp. 2025, Section 3-402), which relates to the Oklahoma Industrial Hemp Program; modifying definition; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

1 SECTION 1. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 3-412 of Title 2, unless there
3 is created a duplication in numbering, reads as follows:

4 A. The Oklahoma Department of Agriculture, Food, and Forestry,
5 Oklahoma Tax Commission, and the Alcoholic Beverage Laws Enforcement
6 (ABLE) Commission shall administer the Oklahoma Industrial Hemp
7 Program in full conformity with the definition of hemp in 7 U.S.C.,
8 Section 1639o, as amended by Section 781, Public Law 119-37.

9 B. No license, permit, or authorization issued under this
10 program shall allow the production, processing, sale, or
11 distribution of any product that is excluded from the definition of
12 hemp under federal law, except as expressly exempted by state law in
13 Section 3-402 of this title. No person shall import, sell, or
14 distribute any product into this state that is excluded from the
15 definition of hemp under federal law, except as expressly exempted
16 by state law in Section 3-402 of this title.

17 C. The Department may promulgate rules to implement testing
18 protocols for total tetrahydrocannabinol (THC), container limits,
19 age verification, point-of-sale restrictions, labeling, packaging,
20 and exclusions for synthetic or non-naturally occurring
21 cannabinoids.

22 D. Any state agency that issues a license, permit, or other
23 authorization to any entity subject to the provisions of this act,
24 including but not limited to the Oklahoma Department of Agriculture,

1 Food, and Forestry, Oklahoma Tax Commission, and the Alcoholic
2 Beverage Laws Enforcement (ABLE) Commission, shall have the
3 authority to revoke or suspend such license, permit, or
4 authorization upon a finding that the licensee or permittee has
5 violated any provision of this act or rules promulgated pursuant
6 thereto. In addition to revocation or suspension, the agency shall
7 impose a civil fine of not less than Ten Thousand Dollars
8 (\$10,000.00) for each violation.

9 E. Any product that does not qualify as hemp under this
10 section, and is not exempted under state law, shall be subject to
11 the provisions of the Uniform Controlled Dangerous Substances Act,
12 Section 2-101 et seq. of Title 63 of the Oklahoma Statutes.

13 F. The Department shall establish a registration program where
14 all products sold as hemp in the state of Oklahoma shall be
15 registered with the Department. The Department shall promulgate
16 rules for this program.

17 SECTION 2. AMENDATORY 2 O.S. 2021, Section 3-402, as
18 last amended by Section 1, Chapter 266, O.S.L. 2024 (2 O.S. Supp.
19 2025, Section 3-402), is amended to read as follows:

20 Section 3-402. As used in the Oklahoma Industrial Hemp Program:

21 1. "Container" means the innermost wrapping, packaging, or
22 vessel in direct contact with a final hemp-derived cannabinoid
23 product in which the final product is enclosed for retail sale to
24

1 consumers, such as a jar, bottle, bag, box, can, carton, or
2 cartridge;

3 2. "Department" means the Oklahoma Department of Agriculture,
4 Food, and Forestry, Oklahoma Tax Commission, or the Alcoholic
5 Beverage Laws Enforcement (ABLE) Commission;

6 ~~2.~~ 3. "Fiber" means the stalk of the industrial hemp plant and
7 does not include the flower or seeds of the plant;

8 ~~3.~~ 4. "Flower" means the part of the industrial hemp plant that
9 contains the majority of the industrial hemp plant's
10 tetrahydrocannabinol and other cannabinoids;

11 ~~4.~~ 5. "Grain" means all of the parts of an industrial hemp
12 plant except the stalk or the flower of the industrial hemp plant;

13 6. "Final hemp-derived cannabinoid product" means any
14 intermediate or final product derived from hemp, other than
15 industrial hemp, that contains cannabinoids in any form and is
16 intended for human or animal use through ingestion, inhalation,
17 topical application, or other form of administration;

18 ~~5.~~ 7. "Handling" means possessing or storing industrial hemp
19 for any period of time on premises owned, operated or controlled by
20 a person licensed to cultivate or process industrial hemp and also
21 includes possessing or storing industrial hemp in a vehicle for any
22 period of time other than during its actual transport from the
23 premises of a licensed person to cultivate or process industrial
24 hemp to the premises of another licensed person;

1 ~~6.~~ 8. "Industrial hemp" or "hemp" means the plant *Cannabis*
2 *sativa* L. and any part of the plant, including the seeds thereof,
3 and all derivatives, extracts, cannabinoids, isomers, acids, salts
4 and salts of isomers, whether growing or not, with a total delta-9
5 tetrahydrocannabinol concentration of not more than three-tenths of
6 one percent (0.3%) on a dry-weight basis, as defined in 7 U.S.C.,
7 Section 1639o, as amended by Section 781, Public Law 119-37.

8 Furthermore, industrial hemp means hemp that is grown for the use of
9 the stalk, whole grain, oil, cake, nut, hull, or any other
10 noncannabinoid derivative of the seeds, or for fiber, or for
11 immature plants, such as microgreens or other edible leaf products,
12 or for research purposes by an institution of higher education that
13 does not enter the stream of commerce.

14 The term hemp does not include:

- 15 a. viable seeds from a cannabis plant that exceed a total
16 tetrahydrocannabinols concentration, including
17 tetrahydrocannabinolic acid, of three-tenths of one
18 percent (0.3%) on a dry-weight basis,
19 b. any cannabinoid that is synthesized or manufactured
20 outside the plant *Cannabis sativa* L. or that is not
21 capable of being naturally produced by the plant,
22 c. intermediate hemp-derived cannabinoid products that
23 contain greater than three-tenths of one percent
24 (0.3%) total tetrahydrocannabinols concentration,

1 including tetrahydrocannabinolic acid, on a dry-weight
2 basis or that contain any cannabinoid described in
3 subparagraph b of this paragraph, or
4 d. final hemp-derived cannabinoid products containing
5 greater than four-tenths of a milligram (0.4 mg)
6 combined total per container of total
7 tetrahydrocannabinols, including
8 tetrahydrocannabinolic acid, and any other
9 cannabinoids that have similar effects, or are
10 marketed to have similar effects, on humans or animals
11 as tetrahydrocannabinol, as determined by the United
12 States Secretary of Health and Human Services.

13 Provided, however, that the exclusion in subparagraph d of this
14 paragraph shall not apply to hemp-derived cannabinoid beverages
15 containing ten milligrams (10 mg) or less of total
16 tetrahydrocannabinols per container that are sold exclusively to
17 persons twenty-one (21) years of age or older in either a
18 convenience store, which shall mean a retail establishment that
19 holds either a retail beer or wine license, and is in good standing
20 with the ABLE Commission and offers a limited selection of food,
21 beverages, and other convenience goods for off-premises consumption
22 and that may also include an on-site fuel station for the sale of
23 gasoline, diesel, or other motor fuels, or a package store licensed
24 under the Oklahoma Alcoholic Beverage Control Act, Title 37A of the

1 Oklahoma Statutes. Such beverages shall be subject to age
2 verification, labeling, packaging, testing, and other requirements
3 established by the Department in consultation with the Alcoholic
4 Beverage Laws Enforcement (ABLE) Commission;

5 ~~7.~~ 9. "Key participant" means a person who has a direct or
6 indirect financial interest in the entity producing hemp, such as an
7 owner or partner in a partnership. A key participant includes an
8 individual who is part of a corporate entity or a tribal-owned
9 corporation. A key participant also includes an executive-level
10 individual such as a chief executive officer, chief operating
11 officer, or chief financial officer. Such term shall not include
12 such management personnel as a farm, field, or shift manager or a
13 member of the leadership of a tribal government who is acting in his
14 or her capacity as a tribal leader except when such member exercises
15 executive managerial control over hemp production;

16 ~~8.~~ 10. "Licensee" means a person who holds a valid Industrial
17 Hemp License to grow industrial hemp under the Oklahoma Industrial
18 Hemp Program. A licensee shall have the ability to remediate
19 noncompliant industrial hemp with a total delta-9
20 tetrahydrocannabinol concentration of not more than one percent
21 (1.0%) on a dry-weight basis for retesting as set forth by the
22 Department as long as the noncompliant industrial hemp has a total
23 delta-9 tetrahydrocannabinol concentration of not more than three-
24 tenths of one percent (0.3%) on a dry-weight basis after retesting,

1 and the option to remediate the industrial hemp through the
2 reasonable destruction of the flower or shredding of the entire lot
3 into a homogeneous biomass results in the remediation of any part of
4 the industrial hemp plant that is above three-tenths of one percent
5 (0.3%) on a dry-weight basis. All noncompliant hemp must be tracked
6 and documented. The State Board of Agriculture shall have
7 jurisdiction over such remediation, which includes, but is not
8 limited to, destruction through composting, burning, or other
9 regulated disposal methods if the industrial hemp is not remediated
10 into a final product before processing below three-tenths of one
11 percent (0.3%) on a dry-weight basis;

12 ~~9.~~ 11. "License" means authorization by the Department for any
13 person to grow and cultivate industrial hemp on a registered land
14 area as part of the Oklahoma Industrial Hemp Program; ~~and~~

15 ~~10.~~ 12. "Processing" means converting industrial hemp into a
16 marketable form, including the production of all derivatives,
17 extracts, cannabinoids, isomers, acids, salts, and salts of isomers;
18 provided, that such products qualify as hemp under this section and
19 federal law; and

20 13. "Total tetrahydrocannabinols" or "total THC" means the sum
21 of the delta-9 tetrahydrocannabinol concentration and the
22 tetrahydrocannabinol acid concentration, as measured after
23 decarboxylation, plus any additional cannabinoids designated by the
24 Secretary of the U.S. Department of Health and Human Services as

1 having similar effects. Total THC is the post-decarboxylation value
2 of THC, either after testing with gas chromatography or LC after
3 using a conversion factor. LC does not use decarboxylation as part
4 of the process and this addition is to account for the conversion of
5 THCA into THC if decarboxylation was part of the process. The
6 addition of 87.7 percent of THCA is applicable if the testing
7 laboratory uses LC with detection to measure the THC. Total THC is
8 the measured THC plus 87.7 percent of THCA.

9 SECTION 3. It being immediately necessary for the preservation
10 of the public peace, health or safety, an emergency is hereby
11 declared to exist, by reason whereof this act shall take effect and
12 be in full force from and after its passage and approval.

13
14 60-2-17500 JL 04/21/26
15
16
17
18
19
20
21
22
23
24